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23-CIV-04607 SEAL ROCK, INC., ET AL. VS. RICHARD TRAVERSO, ET AL.

LINE 4

SEAL ROCK, INC.
RICHARD TRAVERSO

SOBY M. MATHEWS
DANIEL S. MASON

PLAINTIFF: SEAL ROCK, INC.'S MOTION TO COMPEL ATTENDANCE AT DEPOSITION AND FOR MONETARY SANCTIONS

TENTATIVE RULING:

Plaintiffs' motion to compel the deposition of Defendant Richard Traverso is GRANTED as to compelling the appearance and testimony of Defendant and DENIED as to compelling the production of documents demanded in the deposition notice.

Plaintiffs' request for sanctions is GRANTED, in part, as to sanctions against Defendant Traverso and DENIED as to Defendant's counsel.

On January 27, 2026, Plaintiffs served a deposition notice on Defendant by email. The deposition notice called for Defendant to appear to testify and to produce documents at the deposition to be held on March 27, 2026. According to defense counsel, Plaintiffs were already aware at the time that defense counsel had lost contact with his client (as of December 2025).

On January 30, 2026, Defendants' counsel, Daniel Mason, filed a motion to be relieved as Defendants' counsel. (*See* Motion to Be Relieved as Counsel, filed Jan. 30, 2026.) Mr. Mason stated in his accompanying declaration that Defendant Traverso had not responded to his numerous phone calls, voicemails, text messages, and emails, and that he last heard from Defendant Traverso in approximately June of 2025. (Decl. in Supp. of Mot. to be Relieved as Counsel, § 2.) The hearing on the motion to be relieved as counsel is set for November 2, 2026 and defense counsel has not sought to advance it.

Defense counsel informed Plaintiffs' counsel that he had no reason to believe that the Defendant would appear at his deposition. Defendant did not appear for the deposition

If a party fails to appear for examination and produce documents as demanded in a duly served notice of deposition, the propounding party "may move for an order compelling the deponent's attendance and testimony, and the production for inspection of any document." (Code Civ. Proc., § 2025.450, subd. (a).)

The motion to compel "shall set forth specific facts showing good cause justifying the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice." (*Id.*, subd. (b).)

If the motion is granted, "the court shall impose a monetary sanction" in favor of the propounding party and against the deponent, "unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of sanctions unjust. (*Id.*, subd. (g).)

Motion to Compel

Defendant failed to appear for his noticed deposition. Defendant does not dispute the nonappearance or challenge the validity of the deposition notice served by Plaintiffs.

Accordingly, Plaintiff's motion to compel is GRANTED as to compelling Defendant's attendance and testimony at his deposition. He is ORDERED to appear for deposition on a reasonably agreeable date within 30 days of service of the Order (and in any event prior to November 2, 2026). Defense counsel shall make all available reasonable efforts to notify Defendant of the requirement that he appear for deposition, of the date selected for deposition, of the requirement to pay the sanction (described below) and that failure to comply will result in further sanctions that could include terminating sanctions, *i.e.*, the striking of his answer and cross-complaint and entry of default.

However, the statute requires that a motion to compel the production of documents demanded in a deposition notice "shall set forth specific facts showing good cause justifying the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice." (Id., subd. (b).)

Here, Plaintiffs' papers in support of this motion fail to address the issue of good cause or otherwise provide facts and/or arguments justifying the production of the requested documents.

Accordingly, Plaintiff's motion to compel is DENIED as to compelling the production of documents demanded in the deposition notice.

Sanctions

When a motion to compel is granted, "the court shall impose a monetary sanction" in favor of the propounding party and against the deponent, "unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of sanctions unjust. (Id., subd. (g).)

Defendant's failure to appear warrants sanctions. However, the Court finds that the circumstances here make the imposition of sanctions on Defense counsel unjust. On January 30, three days after service of the deposition notice, Defense counsel filed a motion to be relieved as counsel, with an accompanying declaration stating that Defendant had failed to return numerous phone calls, voicemails, text messages, and emails over the previous five months, and that he last heard from Defendant around June of 2025. (Decl. in Supp. of Mot. to be Relieved as Counsel, § 2.) Emails provided by Plaintiffs show Defense counsel made similar representations to Plaintiff prior to the deposition date and stated he could not confirm that Defendant would appear. (*See, e.g.*, Mathews Decl., Ex. D.) The Court declines to impose sanctions against Defense Counsel under these circumstances.

Plaintiffs request \$5,457.00 in sanctions-\$4,902.00 in attorney's fees (for 12.9 hours of work at \$380 per hour), and costs of \$495.00 for the court reporter at the deposition and a \$60 filing fee. This request is excessive in relation to the amount of work that could have been performed and achieved the same result, especially in context. The Court reduces the amount of the sanction as follows: the court finds that 1 hour for appearance at the deposition, .5 hours to meet and confer, 3.5 hours for preparation of the motion and 1.5 hours to review the opposition and draft a reply is appropriate. Plaintiffs provide no support for the billing rate but it appears from his bar number that counsel is an experienced attorney and \$380 an hour is likely reasonable. Accordingly, the Court awards attorneys' fees in an amount of \$2470, plus

costs in the amount of \$555 for a total sanction of \$3025 as against Richard Traverso, which must be paid within 30 days of service of the Order.

Any party who contests a tentative ruling must email Dept11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.

02:00 PM

25-CIV-03629 RICHARD FRESCHET VS. ALAN LIM, ET AL.

LINE 5

RICHARD FRESCHET
ALAN LIM

BRIAN J. MCSWEENEY
PRO PER

MOTION FOR ORDER RE: ADMISSIONS

(continued from 8/10/26)

TENTATIVE RULING:

For the reasons stated below, Plaintiff's "MOTION FOR ORDER ESTABLISHING ADMISSIONS BY DEFENDANTS' RX SOLAR INC. A CALIFORNIA CORPORATION, AND ALAN LIM AND FOR MONETARY SANCTIONS OF \$3,560," filed Jan. 15, 2026, is GRANTED-in-part and DENIED-in-part (as to the amount of sanction only).

In Sept. 2025, Plaintiff served Requests for Admission (Set One) ("RFAs") on both defendants, Alan Lim and Rx Solar, Inc. Defendants' responses to the RFAs were due in Oct. 2025. Defendants have never responded to the RFAs.

On Jan. 15, 2026, several months after the RFA responses were due, Plaintiff filed and served the present motion, entitled: "MOTION FOR ORDER ESTABLISHING ADMISSIONS BY DEFENDANTS' RX SOLAR INC. A CALIFORNIA CORPORATION, AND ALAN LIM AND FOR MONETARY SANCTIONS OF \$3,560." Due to the court's congested hearing calendar, the hearing for this motion was not scheduled to take place until Aug. 10, 2026.

On Aug. 3, 2026, Plaintiff's counsel Ira Leshin filed a supplemental declaration supporting this motion, attaching the subject RFAs, which had been inadvertently omitted from Mr. Leshin's prior, Jan. 15, 2026 declaration.

At the Aug. 10, 2026 hearing, the Court issued a Minute Order stating that the Court will consider Mr. Leshin's Aug. 3, 2026 supplemental declaration, but would continue the hearing to Sept. 14, 2026, to allow defendants additional time to consider the supplemental declaration.

Despite Plaintiff having served the subject RFAs in Sept. 2025 (a year ago), and despite Plaintiff having filed this motion to deem the RFAs admitted roughly nine months ago, and despite having many months to serve responses to the RFAs, even after Plaintiff filed this motion, to date, Defendants still have never responded to Plaintiff's RFAs (Set One).

In light of the foregoing, the motion to deem the RFAs admitted is granted. (Code Civ. Proc. § 2033.280(b), (c).)

Plaintiff's request for monetary sanctions is GRANTED-in-part, in the amount of \$1,060, jointly and severally, against defendants Alan Lim and Rx Solar, Inc. (Code Civ. Proc. § 2033.280(c).) To the extent the motion seeks sanctions against defendants' prior counsel, who has since withdrawn from the case,
